

IN THE HIGH COURT OF KERALA AT ERNAKULAM

Arb.A. No. \_\_\_\_\_ of 2026

ARBITRATION APPEAL

FILED UNDER SECTION 37 OF THE ARBITRATION AND CONCILIATION ACT, 1996

PETITIONER:

M/s Periyar Constructions Pvt. Ltd., represented by its Managing Director, Kalamassery

RESPONDENTS:

1. Kerala Water Authority, represented by its Managing Director, Thiruvananthapuram

BY ADV. R. Menon

Court fee paid: Rs. 500

Date of impugned order: 20.05.2026

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## **SYNOPSIS**

The petitioner approaches this Court aggrieved by the matters set out below. The appellant executed a pipeline contract for the respondent. Disputes on final bills were referred to arbitration and an award was passed in its favour.

## **LIST OF DATES**

20.05.2026: cause of action

Filing: date of presentation

## **ARBITRATION APPEAL**

### **STATEMENT OF FACTS**

1. The appellant executed a pipeline contract for the respondent. Disputes on final bills were referred to arbitration and an award was passed in its favour.
2. By order dated 20.05.2026 the District Court set aside the award under Section 34.

### **GROUND**

- A. The District Court re-appreciated evidence, which Section 34 does not permit.
- B. No ground of patent illegality was made out.

### **PRAYER**

For the reasons stated above, it is respectfully prayed that this Court may:

- i. Set aside the order dated 20.05.2026 and restore the arbitral award.

Dated this 10th day of October, 2026.

[Signed: Counsel for the petitioner, Adv. R. Menon]

## **AFFIDAVIT**

I, M/s Periyar Constructions Pvt. Ltd., represented by its Managing Director, Kalamassery, do hereby solemnly affirm and state as follows:

1. I am the petitioner in the above case and I know the facts of the case.
2. The facts stated in the petition are true to my knowledge, information and belief.
3. The annexures produced are true copies of their originals.

Solemnly affirmed at Ernakulam on 10.10.2026.

[Signed: M/s Periyar Constructions Pvt. Ltd., deponent]

Identified by me. Attested before me, Notary Public, Ernakulam.

## **VAKALATNAMA**

I, M/s Periyar Constructions Pvt. Ltd., the petitioner in the above case, appoint and retain Adv. R. Menon to appear, plead and act for me in the above case and in all proceedings arising from it.

I agree to ratify all acts done by the advocate in pursuance of this authority.

[Signed: M/s Periyar Constructions Pvt. Ltd., client]

Accepted: [Signed: Adv. R. Menon]

## **ANNEXURE A1**

TRUE COPY OF THE ORDER DATED 20.05.2026 OF THE DISTRICT COURT, ERNAKULAM

This is a true copy of the document produced as Annexure A1. The original document bears the seal and signature of the issuing authority and records the reference numbers, the date of issue and the particulars of the petitioner as set out in the petition.

Certified true copy. [Signed: Adv. R. Menon]